

An Act

ENROLLED SENATE
BILL NO. 1684

By: Frix of the Senate

and

Bashore of the House

An Act relating to motor vehicles; amending 27A O.S. 2021, Section 2-7-404, which relates to licenses for highway remediation and cleanup services operators; updating statutory reference; requiring certain operators to have certain insurance coverage; updating statutory language; and providing an effective date.

SUBJECT: Highway remediation insurance

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 27A O.S. 2021, Section 2-7-404, is amended to read as follows:

Section 2-7-404. A. To be licensed pursuant to ~~this act~~ the Oklahoma Highway Remediation and Cleanup Services Act, a person, firm, corporation, or other entity shall meet the following requirements:

1. Principal business facilities are located within ~~Oklahoma~~ this state;

2. Tow trucks are registered and licensed in ~~Oklahoma~~ this state; and

3. ~~Owner~~ The owner is a resident of ~~the State of Oklahoma~~ this state or the service is an Oklahoma corporation.

B. No operator or employee of any operator shall be permitted, allowed, or caused to solicit business or engage in highway

remediation and cleanup services without the operator first having obtained from the Department of Environmental Quality a license to operate a highway remediation and cleanup service. The license number shall be displayed, in conformance with rules of the Department, on both sides of every vehicle operated by the highway remediation and cleanup service. This section shall not apply to the ~~Oklahoma~~ Department of Transportation or the Oklahoma Turnpike Authority.

C. The license fee required by this section shall be in lieu of the motor carrier filing fee as required in Section 165 of Title 47 of the Oklahoma Statutes. It shall not be necessary for any operator to prove public convenience and necessity to obtain such license, and the Department shall issue such license without public hearing. The fee for such license shall be Ten Thousand Dollars (\$10,000.00).

D. All licenses shall expire on the last day of the calendar year and may be renewed annually at a cost of One Thousand Dollars (\$1,000.00) upon application to the Department as prescribed by rule. No license fee shall be refunded in the event that the license is suspended or revoked.

E. No operator or employee of any operator shall be permitted, allowed, or caused to solicit business or engage in highway remediation and cleanup services without the operator first having obtained at least Three Million Dollars (\$3,000,000.00) of liability insurance coverage. Proof of such coverage shall be submitted to the Department of Environmental Quality at the time of the application for a license or renewal of such license.

F. The Department is authorized to issue notices of violation and compliance orders and to suspend, revoke, or refuse to issue or renew the license of an operator when it finds the licensee or applicant has not complied with or has violated any of the provisions of ~~this act~~ the Oklahoma Highway Remediation and Cleanup Services Act, or any rules adopted by the Board. A suspension shall be for a period of time deemed appropriate by the Department for the violation. An operator whose license has been revoked may not apply for one (1) year. Any suspended or revoked license shall be returned to the Department by the operator. An operator whose license is revoked by the Department shall be required to pay an

additional fee of Ten Thousand Dollars (\$10,000.00) for reinstatement if such reinstatement is authorized by the Department.

~~F.~~ G. The Department shall keep a current list of highway remediation and cleanup service operators licensed pursuant to ~~this act~~ the Oklahoma Highway Remediation and Cleanup Services Act and forward such list to the Department of Public Safety for distribution to wrecker service operators licensed by the Department of Public Safety. The Department of Environmental Quality shall update such list regularly to delete highway remediation and cleanup service operators whose licenses have been suspended or revoked.

~~G.~~ H. Fees or fines collected pursuant to the provisions of this section shall be remitted to the State Treasurer to be deposited in the Department of Environmental Quality Revolving Fund.

SECTION 2. This act shall become effective November 1, 2026.

Passed the Senate the 25th day of March, 2026.

Presiding Officer of the Senate

Passed the House of Representatives the 6th day of May, 2026.

Presiding Officer of the House
of Representatives

OFFICE OF THE GOVERNOR

Received by the Office of the Governor this _____

day of _____, 20_____, at _____ o'clock _____ M.

By: _____

Approved by the Governor of the State of Oklahoma this _____

day of _____, 20_____, at _____ o'clock _____ M.

Governor of the State of Oklahoma

OFFICE OF THE SECRETARY OF STATE

Received by the Office of the Secretary of State this _____

day of _____, 20_____, at _____ o'clock _____ M.

By: _____